IN THE SUPREME COURT OF THE STATE OF KANSAS

Original Action No. _____

SCOTT SCHWAB, Kansas Secretary of State, in his official capacity,
and
MICHAEL ABBOTT, Wyandotte County Election Commissioner, in his official capacity,
Petitioners,

THE HONORABLE BILL KLAPPER, in his official capacity as a District Court Judge, Twenty-Ninth Judicial District,
Respondent.

FAITH RIVERA, DIOSSELYN TOT-VELASQUEZ, KIMBERLY WEAVER, PARIS RAITE, DONNAVAN DILLON, and LOUD LIGHT,
Plaintiffs in Wyandotte County District Court Case 2022-CV-89 and Respondents under Kansas Supreme Court Rule 9.01(a)(1),

TOM ALONZO, SHARON AL-UQDAH, AMY CARTER, CONNIE BROWN COLLINS, SHEYVETTE DINKENS, MELINDA LAVON, ANA MARCELA MALDONADO MORALES, LIZ MEITL, RICHARD NOBLES, ROSE SCHWAB, and ANNA WHITE,
Plaintiffs in Wyandotte County District Court Case 2022-CV-90 and Respondents under Kansas Supreme Court Rule 9.01(a)(1).

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PETITION IN MANDAMUS AND QUO WARRANTO

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COME NOW Petitioners, Kansas Secretary of State Scott Schwab and Wyandotte County Election Commissioner Michael Abbott, and respectfully bring this action in mandamus and quo warranto seeking an order requiring the dismissal of two lawsuits currently pending before the Respondent, District Court Judge Bill Klapper, that seek to challenge the constitutionality of the recently passed redistricting legislation for federal congressional districts. Never before in Kansas history have congressional maps been challenged in state courts, and for good reason: Kansas state courts lack jurisdiction to pass on the constitutionality of congressional maps. At the very least, the legal theories asserted by Plaintiffs in the pending district court proceedings are not valid as a matter of Kansas law.

This case is of great urgency and significant public concern. The congressional maps being challenged apply to the primary election to be held on August 2, 2022, and the candidate filing deadline for that election is June 1, 2022, *see* K.S.A. 25-205, just over three months away. It is vital that this dispute be resolved quickly. Accordingly, Petitioners are contemporaneously filing a motion to expedite this proceeding, as well as a motion to stay the district court proceedings until this case is resolved.

In support of the Petition, Petitioners allege and state as follows:

I. JURISDICTION AND PARTIES

1. This is an original action in mandamus and quo warranto pursuant to K.S.A. 60-801 *et seq.*, K.S.A. 60-1201, *et seq.*, and the Kansas Constitution. This Court has original jurisdiction by virtue of Article 3, § 3, of the Kansas Constitution, K.S.A. 60-801 *et seq.*, K.S.A. 60-1201, *et seq.*, and Kansas Supreme Court Rule 9.01.

2. In accordance with Kansas Supreme Court Rule 9.01(a), Petitioners are filing a Memorandum in Support of this Petition, together with documentary evidence supporting the facts alleged.

3. For reasons further described in the Memorandum in Support of this Petition, the Court should exercise its original jurisdiction over this matter because the case presents purely legal issues of significant public concern, and there is a compelling need for an expeditious and authoritative ruling on the important legal issues presented. *See* Kansas Supreme Court Rule 9.01(b).

4. Petitioner Scott Schwab is the Secretary of State of Kansas and is the State's chief election official. He is a named defendant in two recently filed district court cases that seek to challenge the constitutionality of the new congressional map, *Rivera v. Schwab*, 2022-CV-89 (Wyandotte County D. Ct.) and *Alonzo v. Schwab*, 2022-CV-90 (Wyandotte County D. Ct.).

5. Petitioner Michael Abbott is the Election Commissioner for Wyandotte County. He is also a defendant in the *Rivera* and *Alonzo* cases.

6. Respondent Bill Klapper is a District Court Judge in the Twenty-Ninth Judicial District (Wyandotte County) and is currently assigned to *Rivera v. Schwab*, 2022-CV-89 and *Alonzo v. Schwab*, 2022-CV-90.

7. Judge Klapper may be served as specified in K.S.A. 60-205, *see* Kansas Supreme Court Rule 1.11(a), and is being served as shown by the attached Certificate of Service.

8. Faith Rivera, Diosselyn Tot-Velasquez, Kimberly Weaver, Paris Raite, Donnavan Dillon, and Loud Light are Plaintiffs in *Rivera* and are Respondents in this action by virtue of Kansas Supreme Court Rule 9.01(a)(1). They are being served as specified in K.S.A.

60-205, *see* Kansas Supreme Court Rule 1.11(a), as shown by the attached Certificate of Service.

9. Tom Alonzo, Sharon Al-Uqdah, Amy Carter, Connie Brown Collins, Sheyvette Dinkens, Melinda Lavon, Ana Marcela Maldonado Morales, Liz Meitl, Richard Nobles, Rose Schwab, and Anna White are Plaintiffs in *Alonzo* and are Respondents in this action by virtue of Kansas Supreme Court Rule 9.01(a)(1). They are being served as specified in K.S.A. 60-205, *see* Kansas Supreme Court Rule 1.11(a), as shown by the attached Certificate of Service.

II. STATEMENT OF FACTS

10. The Kansas Legislature is responsible for redrawing the boundaries of Kansas's congressional districts every ten years based on the most recent decennial census. *See Essex v. Kobach*, 874 F. Supp. 2d 1069, 1073 (D. Kan. 2012).

11. Earlier this year, based on the results of the 2020 Census, the Kansas Legislature passed Substitute for Senate Bill 355 (SB 355), which adopted the "Ad Astra 2" congressional map. Governor Laura Kelly vetoed the bill, but the Legislature overrode her veto by the required two-thirds majorities in each house, with a 27-11 vote in the Senate on February 8, 2022, and an 85-37 vote in the House of Representatives on February 9, 2022. SB 355 took effect with its publication in the Kansas Register on February 10, 2022. A copy of SB 355 is included as Exhibit A.

12. The Ad Astra 2 map adopted by SB 355 is included as Exhibit B and is also available on the Kansas Legislative Research Department's website at: http://www.kslegresearch.org/KLRD-web/Publications/Redistricting/2022-Plans/M3_AdAstra_2-packet.pdf.

13. On February 14, 2022, Faith Rivera, Diosselyn Tot-Velasquez, Kimberly Weaver, Paris Raite, Donnavan Dillon, and Loud Light filed a lawsuit in Wyandotte County District Court against Petitioners Secretary of State Scott Schwab and Wyandotte County Election Commissioner Michael Abbott alleging that SB 355 violates the Kansas Constitution and seeking declaratory and injunctive relief. *See Rivera v. Schwab*, 2022-CV-89 (Wyandotte County D. Ct.). The Petition is attached as Exhibit C.

14. The same day, Tom Alonzo, Sharon Al-Uqdah, Amy Carter, Connie Brown Collins, Sheyvette Dinkens, Melinda Lavon, Ana Marcela Maldonado Morales, Liz Meitl, Richard Nobles, Rose Schwab, and Anna White filed a similar lawsuit also in Wyandotte County District Court seeking declaratory, injunctive, and mandamus relief against SB 355 based on alleged violations of the Kansas Constitution. *See Alonzo v. Schwab*, 2022-CV-90 (Wyandotte County D. Ct.). The Petition in that case is attached as Exhibit D.

III. GROUNDS FOR RELIEF

15. Kansas courts lack authority to consider constitutional challenges to congressional maps. The Elections Clause in Article I, Section 4, of the U.S. Constitution provides that "[t]he Times, Places and Manner of holding Elections for Senators and Representatives shall be prescribed in each State by the *Legislature* thereof." U.S. Const. art. I, § 4 (emphasis added). Neither that provision nor Kansas law gives courts any role in the lawmaking process by which congressional maps are drawn. As such, a state court's insertion of itself into that process would violate the Elections Clause.

16. The Kansas Constitution gives this Court a limited role in the enactment of *state legislative* districts. *See* Kan. Const. art X, § 1. But no similar provision exists under Kansas law for *federal congressional* districts. Like the U.S. Constitution, the Kansas

Constitution does not permit state courts to determine the validity of congressional redistricting plans.

17. Even if state courts could determine the validity of congressional redistricting plans, no cause of action exists under the Kansas Constitution for partisan gerrymandering under any of the theories advanced by Plaintiffs in *Rivera v. Schwab* and *Alonzo v. Schwab*. Rather, this Court should hold that partisan gerrymandering claims are not justiciable under the Kansas Constitution, as the U.S. Supreme Court has held with respect to the U.S. Constitution, *see Rucho v. Common Cause*, 139 S. Ct. 2484 (2019), and as multiple other states have held with respect to their own constitutions, *see, e.g., Johnson v. Wisconsin Elections Comm'n*, 399 Wis. 2d 623, 657, 967 N.W.2d 469 (2021); *Pearson v. Koster*, 359 S.W.3d 35, 42 (Mo. 2012).

18. If Kansas courts can entertain state constitutional claims against federal congressional maps based on alleged racial vote dilution, this Court should adopt the federal equal protection standard and require *purposeful* discrimination. *See Shaw v. Reno*, 509 U.S. 630, 649 (1993). Because the petitions in *Rivera v. Schwab* and *Alonzo v. Schwab* do not plausibly plead purposeful discrimination, the racial vote dilution claims should be dismissed.

IV. RELIEF SOUGHT

WHEREFORE, for the reasons stated herein and in the Memorandum in Support of the Petition, Motion to Expedite, and Motion to Stay District Court Proceedings, Petitioners seek the following relief:

a. An order requiring Respondent District Judge Klapper to dismiss *Rivera v. Schwab*, 2022-CV-89 (Wyandotte County D. Ct.) and *Alonzo v. Schwab*, 2022-CV-90 (Wyandotte County D. Ct.).

b. An order granting Petitioners' motion to expedite this proceeding and providing for an expedited briefing schedule and oral argument setting;

c. An order staying district court proceedings in *Rivera v. Schwab*, 2022-CV-89 (Wyandotte County D. Ct.) and *Alonzo v. Schwab*, 2022-CV-90 (Wyandotte County D. Ct.); and

d. Such other and further relief as this Court deems just and proper.

s/ Brant M. Laue
Respectfully submitted,
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CERTIFICATE OF SERVICE

The undersigned certifies that on February 18, 2022, a true and correct copy of the above and foregoing was served as per Kan. Sup. Ct. R. 1.11(a) and K.S.A. 60-205(b)(2)(C) by depositing a copy in the U.S. mail to the following mailing addresses, and electronic copies were also sent to the following email addresses:

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